

24NNCV05053 24NNCV05053

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Case Number: 24NNCV05053 Hearing Date: July 31, 2026 Dept: D

TENTATIVE RULING

Calendar: 10

Date: July 31, 2026

Case No: 24NNCV05053 Trial Date: May 10, 2027

Case Name: Tran v. Esparza, et al.

MOTION FOR RECONSIDERATION

[CCP § 1008]

Moving Party: Defendant, Martin Vera

Responding Party: Plaintiff, Henry Chi Tran, by and through Hung Tran, his conservator

RELIEF REQUESTED:

Reconsider the Court's prior order granting monetary sanctions to Plaintiff's counsel on the Motion to Compel Responses to Form Interrogatories, Set One.

CAUSES OF ACTION: from First-Amended Complaint

1) Physical Abuse of Dependent Adult – Battery

2) Physical Abuse of Dependent Adult – Assault

- 3) Neglect of Dependent Adult
- 4) Negligence
- 5) Intentional Infliction of Emotional Distress
- 6) False Imprisonment
- 7) Abandonment
- 8) Isolation
- 9) For Unlawful, Deceptive and/or Unfair Business Practices

SUMMARY OF FACTS:

Plaintiff Hung Tran, Conservator for Henry Chi Tran, brings this action against Defendants Efren Esparza ("Esparza"), Martin Vera ("Vera"), Xclusive Services LLC, Eastern Los Angeles Regional Center for the Developmentally Disabled, Inc and Adan Canas. The Complaint alleges that Henry is a thirty-six-year-old male who suffers from developmental disabilities and is a dependent adult within the meaning of Welfare & Institutions Code section 15610.23. Plaintiff alleges that Henry received in-home caregiving services from Xclusiv Services between 2020 and 2022, during which time Henry suffered ongoing and grievous injuries and damages. The Complaint alleges that Defendants and each of them intentionally isolated Henry from his mother and brothers, by manipulation and false statements. Plaintiff alleges that this maneuver was done with the intent of preventing Henry's family from knowing the harm Henry was suffering.

The Complaint alleges that while Defendants were responsible for Henry's care and wellbeing, they left him unattended, unsupervised, and in need of care. Specifically, Plaintiff alleges that Defendants failed to provide Henry with adequate nutrition or medical treatment and subjected Henry to physical abuse. As a result, Henry allegedly suffered multiple physical injuries, including visible marks on his back apparently inflicted by belt whips or blunt objects. The Complaint further alleges that on July 12, 2022, Henry sustained a large laceration above his right eyebrow, a black eye, and an abrasion on his forehead. Plaintiff also alleges that on October 14, 2022, Defendants locked Henry in a room unattended for several hours, after which he was eventually found by the property manager in the backyard, alone and without any clothes on. Two days later, on October 16, 2022, Henry's mother visited and allegedly observed multiple bruises and scars on Henry's back.

The Complaint alleges that Henry has sustained injuries to his person and nervous system, which have adversely affected his health, strength, and activity. As a result of these injuries, Plaintiff alleges that Henry has suffered, and continues to suffer, significant mental, physical, and nervous pain and suffering.

ANALYSIS:

A motion for reconsideration is used to ask the court to modify, amend, or revoke its earlier order on a prior motion to the court because of new or different facts, circumstances, or law. (CCP, § 1008, subd. (a).) Such an order may involve an interim or final order (CCP, § 1008, subds. (e), (h)), where an interim order is an intermediate ruling of some kind that requires further proceedings before the suit can be resolved, and where a final order is an order that finally disposes of the suit (See *People v. DeLouize* (2004) 32 Cal.4th 1223, 1231 [differentiating between interim and final orders]).

A party may move for reconsideration based on: (1) new or different facts, (CCP, § 1008, subd. (a); see e.g., *In re Marriage of LaMoure* (2013) 221 Cal.App.4th 1463, 1473 [reconsideration motion granted on new evidence]); (2) new or different circumstances, (CCP, § 1008, subd. (a)); and (3) new or different law, (CCP, § 1008, subd. (a); *Baldwin v. Home Sav. of Am.* (1997) 59 Cal.App.4th 1192, 1196.) However, a party cannot move reconsideration based on the court's erroneous order, i.e., the court's misinterpretation of facts or law. (See *Jones v. P.S. Dev. Co.* (2008) 166 Cal.App.4th 707, 724, disapproved on other grounds by *Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 531-532, 532 n. 4.)

A court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon "new or different facts, circumstances or law." (*Gilbert v. AC Transit* (1995) 32 Cal.App.4th 1494, 1499.) Motions for reconsideration are restricted to circumstances where a party offers the Court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Id.*)

Moreover, there is a strict requirement of diligence, which means the moving party must present a satisfactory explanation for failing to provide the evidence or different facts earlier. (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690.) The burden under Section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at trial. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213.)

Defendant Vera moves for reconsideration of the Court's March 20, 2026, order imposing sanctions in the amount of \$2,278.00 against Vera and counsel Philip H. Lo, Gordon Rees Scully Mansukhani LLP.

Plaintiff served Form Interrogatories, Set One on Vera on May 16, 2025, in an email addressed to Vera's then counsel of record. (Lo Decl., ¶ 3, Ex. A.) On July 10, 2025, Vera's counsel indicated that there was a conflict of interest and that he was unable to represent Vera or provide the requested discovery responses. (Lo Decl., ¶ 3, Ex. A.) Vera's current counsel was substituted in on October 31, 2025. (Lo Decl., ¶ 6, Ex. C.) Vera's current counsel asserts that he did not see the Form Interrogatories until Plaintiff filed the Motion to Compel on December 9, 2025. (Lo Decl., ¶ 10.) Vera subsequently served responses to the Form Interrogatories, prior to the hearing on the Motion. (Mot., p. 6:3-4.) Counsel further asserts that the Motion to Compel was not properly served because the service list identified two emails to be served, and , and the Motion was served only to the email address . (Lo Decl., ¶ 11, Ex. D.)

Counsel contends that under the circumstances, the imposition of sanctions was unjust because, when he substituted into the matter, he was unaware that the discovery had been outstanding for several months. Upon Plaintiff filing the Motion and reviewing the Form Interrogatories at issue, Vera served the outstanding discovery before the hearing and the deadline to file an opposition. The Court ultimately denied the Motion as moot, but granted Plaintiff's request for sanctions in the amount of \$2,278.00. In ruling on the sanctions request, the Court noted that Plaintiff's counsel emailed Vera's new counsel on November 14, 2025 concerning the outstanding discovery responses, and left a follow-up voice message on December 8, 2025, but received no response. (3/20/2026 Minute Order.)

As an initial matter, Vera has not presented new or different facts within the meaning of CCP section 1008. (*New York Times*, supra, 135 Cal.App.4th at 213.) To the extent counsel did not previously assert these arguments, the circumstances described above were available to Vera at the time he filed the opposition to the Motion to Compel. A motion for reconsideration may not be used to raise arguments that a party could have, but chose not to, raise the first time around. Even if the Court were to characterize counsel's lack of awareness that the discovery had been outstanding for several months before he substituted into the action as a "new" circumstance, it does not warrant reconsideration. The Court imposed sanctions based on current counsel's failure to respond to Plaintiff's November 14 and December 8 communications, not based on prior counsel's failure to timely respond to the discovery. As to Vera's argument regarding improper service, he waived this argument when he filed an opposition addressing the merits of the Motion to Compel. (*Carlton v. Quint*, (2000) 77 Cal.App.4th 690, 697, quoting *Tate v. Superior Court*, (1975) 45 Cal.App.3d 925, 930 [An "opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of motion."]; *Accord De Luca v. Board of Sup'rs of Los Angeles County*, (1955) 134 Cal.App.2d 606, 609.)

The motion is DENIED.

Request for Sanctions

In the opposition, Plaintiff requests sanctions in the amount of \$2,658.00, arguing that this Motion for Reconsideration is itself a misuse of the discovery process. (Opp., pp. 6:12-8:2.) The Court does not find that filing the instant motion warrants the imposition of additional sanctions. The request for sanctions is DENIED.

RULING:

Defendant Martin Vera's Motion for Reconsideration is DENIED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.